

IN THE CHANCERY COURT FOR HICKMAN COUNTY, TENNESSEE

IN RE: ESTATE OF LOU ANNA LAWHORN, DECEASED

FILED: Oct. 14, 1993 2:00 p.m.

ORDER

CLERK & MASTER

by [redacted] Deputy Clerk

This cause came on to be heard on the 19th day of July, 1993, before the Honorable [redacted], upon the final settlement filed by Freddie Joe Lawhorn and [redacted], Executors, upon the objections by Eddie Lawhorn to the final accounting as set out in his letter dated March 11, 1993, and upon the testimony of Freddie Joe Lawhorn, [redacted], and Eddie Lawhorn, and upon the agreement of the parties, as evidenced by their signatures to this Agreed Order, to compromise and settle any existing dispute or controversy between them with regard to the distribution of the estate.

The Court found, and the parties agreed, that during the pendency of the estate, the parties sold three tracts of real estate and, without consent of counsel or approval by the Court, the parties divided the proceeds of these sales.

The Court finds, and the parties agree, that a complete division of the funds from the sale of this property has not been made and that the estate still retains the sum of \$362.30, which represents one-half of the checking account of Lou Anna Lawhorn, the sum of \$550.00 on the Tottys Bend farm, \$127.83 on the 16.5 acres in Tottys Bend, and \$42.50 from the McDonald payment, which are payable by the estate to Eddie Lawhorn.

The Court further found that Freddie Lawhorn sold the decedent's automobile for the total amount of \$700.00 and collected a down-payment in the amount of \$350.00; however, because of mechanical failure of the vehicle, Freddie Lawhorn felt it inequitable, and the Court agreed, to collect the balance due on the vehicle. Therefore, from the sale of the vehicle, the estate should distribute the sum of \$350.00 by paying one-half of this sum to Eddie Lawhorn and one-half this sum to Freddie Lawhorn.

ENTERED ON PROBATE CLERK'S BOOK 6 PAGE 645

CLERK & MASTER

by [redacted]

The Executor is further charged with the sum of \$2,596.15 from the First Federal account, and Freddie Lawhorn and Eddie Lawhorn are each entitled to one-half of this sum.

In addition, the Executor is charged with the sum of \$15,362.02, which was on deposit with First Federal Savings and which Freddie Lawhorn transferred to the Greenfield Bank. Eddie Lawhorn is entitled to one-half of this amount. From this amount, Freddie Lawhorn deposited the sum of \$10,129.82 with the trust account of Jerry V. Smith.

The Executor is further charged with the sum of \$3,890.40 from the U.S. Courthouse Credit Union, which he deposited with the trust account of Jerry V. Smith. Eddie Lawhorn is entitled to one-half of this amount. There is presently a total on deposit in the trust account of Jerry V. Smith the sum of \$14,020.22.

The estate retains the sum of \$6,308.46 in Red Stone Credit Union presently under the control of Eddie Lawhorn. Freddie Lawhorn is entitled to one half-this amount and Eddie Lawhorn is entitled to one-half of this amount.

The parties also own a note, referred to as the "Dunn Note", which is under the control of Eddie Lawhorn and on which a total of \$4,512.00 has been collected as of the date of the hearing. These sums have been equally divided between Freddie Lawhorn and Eddie Lawhorn. There is a balance due on the "Dunn Note" of \$3,286.02, and one-half this amount should be paid to Freddie Lawhorn and one-half retained by Eddie Lawhorn, as payments on this note are received.

The parties further agree, and the Court concurs, that had certain funds been placed on deposit earning interest at the rate of 8% per annum, the sum of \$2,556.24 would have been generated. Therefore, the Executor is charged with paying one-half that sum, or \$1,278.12, to Eddie Lawhorn.

Due to the actions of the Executors, they are required to pay their own attorneys fees to [REDACTED], Attorney, from Freddie Joe Lawhorn's share of the estate proceeds. The Court

further found that Eddie Lawhorn should pay his attorneys fees from his share of the proceeds of the estate.

The Court considered the matter of the accounting which was paid by the estate from the funds held in the trust account of [REDACTED]. The Court found, and the parties agreed, that although the accounting was necessary and beneficial to a resolution of the matter, that the accounting was required because of the inactions of the Executors who are chargeable personally with this expense, which shall be paid from the share of Freddie Lawhorn or by the executors personally.

The estate has paid the cost bill from the Clerk and Master in the amount of \$136.00, and one-half that amount should be charged against each of the shares of the beneficiaries.

IT IS THEREFORE ORDERED that upon payment by the Executors to Eddie Lawhorn in the amount of \$10,237.80, and Freddie Lawhorn retaining a like sum (all or a portion of which may have already been retained by or paid to Freddie Lawhorn), and further upon release by Freddie Lawhorn to any claim to the Red Stone Credit Union account and the agreement by the Executors to execute any documents necessary to fully vest all of the Red Stone Credit Union account (\$6,308.46) in Eddie Lawhorn, and further upon agreement by Eddie Lawhorn to continue making collections on the Dunn note and to pay to Freddie Lawhorn one-half the proceeds of these collections on a monthly basis until the Dunn Note has been paid in full, the Executors are discharged.

The Pleasantville property is jointly owned property and Freddie Lawhorn and Eddie Lawhorn will each continue to retain a one-half (1/2) interest therein and any proceeds from a sale of that property will be divided equally between Freddie Lawhorn and Eddie Lawhorn at such time as the property is sold.

ENTER this 5th day of Oct., 1993.


CHANCELLOR

APPROVED FOR ENTRY:




Dickson, Tennessee 37056


Attorney for Executors

Freddie Lawhorn
Freddie Lawhorn

Eddie Lawhorn
Eddie Lawhorn